

Message History (2)

On 5/4/2026 11:58:49 PM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/4/2026 and given the reference number **W012674-050426** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.**

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context

On April 28, 2026, in response to PRA W012570-041926, SMPD produced a Flock platform event log ("SMPD4.20.2026_EVENTLOG") reflecting an event in which a networkShare to "Receiving Organization: University of the Pacific (CA)" was created on the SMPD network:

- Event ID 7ede5f4e-4f97-56dc-9357-4b92d3904374 — 2026-02-12 04:51:19.301Z — create networkShare — Permissions: feedView — User: Phoenix O'Rourke

Two SMPD policies and two Civil Code provisions in effect on 2026-02-12 govern that action:

- Policy 463.8(b) (effective December 22, 2025): "The request is reviewed by the ALPR Committee Captain or the authorized designee and approved before the request is fulfilled."**
- Policy 462.8 (in the predecessor ALPR policy): also requires documented review of external-agency access.**
- Civil Code § 1798.90.55(a): "An ALPR operator shall maintain reasonable security procedures and practices, including operational, administrative, technical, and physical safeguards, to protect ALPR information from unauthorized access, destruction, use, modification, or disclosure." Internal approval workflows governing who may grant external access to ALPR information are administrative safeguards**

within the meaning of this provision.

- Civil Code § 1798.90.51(b)(8): requires the agency's usage and privacy policy to include "the title of the official custodian, or owner, of the ALPR system responsible for implementing this section."

This request seeks (i) the public-employee identifying information for the user named in the event log, (ii) records establishing how that user came to hold Flock platform authority to create external network shares, and (iii) the documented review and approval records under Policy 463.8(b) and Policy 462.8 for the 2026-02-12 University of the Pacific addition specifically.

Scope. This request is limited to the records identified below. It does not seek records concerning any disciplinary investigation or personnel-record content of any individual employee; it seeks only public-employee identifying information (name, title, rank/classification, unit assignment, employment dates) and operational access-control records.

Cross-references. PRA W012664-050426 (filed 2026-05-04) seeks records concerning the lifecycle and current state of the 2026-02-12 networkShare itself — what happened to the share. This request is distinct: it concerns the authorization chain — by whom, under what authority, with what approval. The two requests do not overlap.

Note on PRA W012328-031226. On March 12, 2026, I requested (item 1) all internal SMPD communications containing "University of the Pacific" or "UOP" from January 1, 2026 through the date of that request, and (item 2) records documenting the removal of any agency from the Flock sharing list between February 18, 2026 and the date of that request — including agency name, date of removal, who authorized the removal, and reason. On March 16, 2026, SMPD closed W012328 with the response: "A good faith and diligent search yielded no records responsive to your request. Removals from Flock are conducted within the platform at the discretion of the Lieutenant assigned to the ALPR Committee. There are no corresponding records." When I asked whether the Flock platform itself maintains a log of additions and removals, the response was: "I did not locate a log of this information in the Flock platform." On April 28, 2026, in response to W012570-041926, SMPD produced the platform EVENTLOG, which contains both the 2026-02-12 create event by Phoenix O'Rourke and a 2026-02-28 delete event by Steve Casazza — both directly responsive to W012328 item 2. The records identified in this request are existing records of the same general type (platform event-log entries, user-account records, internal correspondence concerning sharing-list changes) and the search performed should reach those same record sources.

Records requested — covering the period from January 1, 2025 through the date of production, except where otherwise noted:

1. Public-employee identifying information for Phoenix O'Rourke. The job title, rank or classification, unit/division assignment, and employment-status dates (start of employment with SMPD; if applicable, end of employment with SMPD) for the SMPD employee named "Phoenix O'Rourke" identified in the W012570-041926 event log. This item seeks only the categories of public-employee information held to be disclosable in *International Federation of Professional and Technical Engineers v. Superior Court* (2007) 42 Cal.4th 319; it does not seek any disciplinary, complaint, investigation, or personnel-file narrative content.

2. Phoenix O'Rourke's Flock platform user-account history. Flock platform event-log entries (or equivalent administrative records) reflecting (a) the creation of the Flock user account associated with Phoenix O'Rourke, (b) every grant, modification, or change of permission level or role on the platform for that user, and (c) the actor who initiated each event. The W012570-041926 EVENTLOG is the responsive record format; this item seeks the entries pertaining to the Phoenix O'Rourke account specifically, including the entry that conferred the permission level enabling creation of networkShare records. Date range for this item: all entries from the date the Phoenix O'Rourke Flock user account was created through the date of production, regardless of whether the account-creation date predates the otherwise-applicable January 1, 2025 cutoff.

3. Records establishing who is authorized to create networkShare records on the SMPD Flock account. Records sufficient to identify (a) the SMPD personnel — by name, title, or role — who hold, or have held during the period covered by this request, the Flock platform permission level enabling creation or modification of external networkShare records on the SMPD account; and (b) the policy, SOP, written delegation, designation memorandum, or other written instrument under which that permission level is granted to specific personnel. If no such written instrument exists and the platform permission is conferred through administrator action without an underlying written delegation, please confirm that.

4. Identity of the ALPR Committee Captain and authorized designees on 2026-02-12. Records sufficient to identify (a) the SMPD employee who held the role of "ALPR Committee Captain" referenced in Policy 463.8(b) on February 12, 2026; (b) any "authorized designee" of the ALPR Committee Captain in effect on that date, by name and the written designation establishing the designee status; and (c) for any individual identified in (a) or (b), the date the role or designation became effective.

5. Policy 463.8(b) and Policy 462.8 review and approval records for the 2026-02-12 UOP addition. All records reflecting the review, consideration, or approval of the addition of University of the Pacific to the SMPD Flock network share on or before February 12, 2026 — including but not limited to (a) the request, application, or initiating communication identified in Policy 463.8(b) as "the request"; (b) any review record, evaluation, written recommendation, or approval communication by the ALPR Committee Captain or authorized designee; (c) any written verification that the receiving entity qualifies as a California public agency under Civil Code § 1798.90.5(f) or under Policy 463.8 as it then existed; and (d) any internal correspondence, email, Teams or chat message, calendar entry, or meeting note concerning the addition. The search responsive to this item should include, at a minimum: (i) Flock platform records (the EVENTLOG and any related platform-side records, as the source of the W012570-041926 production), (ii) email and instant-message accounts of SMPD personnel involved in ALPR administration, (iii) any ALPR Committee meeting records, agendas, or minutes, and (iv) any written-approval or designation files maintained by SMPD's records custodian. If the response to this item is that no responsive records exist, please affirm that each of the four record sources listed above was searched and that none contain responsive records.

6. ALPR-related training-completion records for Phoenix O'Rourke. Civil Code §§ 1798.90.51(b)(2) and 1798.90.53(b)(2) require the ALPR operator's and end-user's usage and privacy policy to identify training requirements for authorized employees and independent contractors. SMPD's Policy 463.4(d), SOP 205.3 (operator training), and SOP 205.4 (end-user training) implement those statutory obligations. All records reflecting that Phoenix O'Rourke completed the Department-approved training required by those provisions prior to the 2026-02-12 action, including any METR record, Training Division roster

entry, certificate of completion, signed acknowledgment, or equivalent record. Date range for this item: all responsive records prior to the 2026-02-12 action, regardless of whether the training-completion date predates the otherwise-applicable January 1, 2025 cutoff. Training completed before that date remains responsive if it is the training (or any subsequent recertification, refresher, or update training) that satisfied the prerequisite for the 2/12 action and was unexpired as of 2026-02-12 under any expiration, recertification, or refresher requirement set by Policy 463, SOP 205, or any applicable training schedule. A separate, broader PRA seeking SMPD ALPR training records across all personnel, curriculum, and training-administration records has also been filed (PRA W012672-050426). This item is limited to the training-completion record for one named individual on a specific question of authorization-prerequisite compliance, and should be substantially faster to produce than the broader request — a single lookup in METR or the Training Division's records. Production of O'Rourke's training-completion record under either request is sufficient; if produced under the broader request, please indicate that in the response to this item rather than holding this item open pending the broader response.

7. Records identifying Phoenix O'Rourke as Chief of Police, ALPR Committee Captain, or authorized designee under Policy 463.8(b) on 2026-02-12. Records identifying Phoenix O'Rourke as Chief of Police, ALPR Committee Captain, or authorized designee under Policy 463.8(b) on February 12, 2026 — including (a) the appointment, designation, or assignment record; (b) the effective dates; and (c) the document or instrument under which the appointment or designation was made (for an authorized designee, the written designation by the Chief of Police or the ALPR Committee Captain naming O'Rourke). If no such record exists, please confirm that.

8. Records identifying Steve Casazza as Chief of Police, ALPR Committee Captain, or authorized designee under Policy 463.8(b) on 2026-02-28. Records identifying Steve Casazza as Chief of Police, ALPR Committee Captain, or authorized designee under Policy 463.8(b) on February 28, 2026 — including (a) the appointment, designation, or assignment record; (b) the effective dates; and (c) the document or instrument under which the appointment or designation was made (for an authorized designee, the written designation by the Chief of Police or the ALPR Committee Captain naming Casazza). If no such record exists, please confirm that.

If no records are located for any individual item, please respond to that item separately and continue processing the remaining items.

Anticipated exemption issues:

- Penal Code §§ 832.7–832.8 (peace officer personnel records). Items 1 through 6 do not seek disciplinary, complaint, or investigation content. Item 1 seeks only the categories of public-employee information held to be disclosable in *International Federation of Professional and Technical Engineers v. Superior Court* (2007) 42 Cal.4th 319 — name, title, classification, unit, and service dates. Items 2 through 5 concern operational access-control records — who held what platform permission, by what authority, with what documented review — which are not "personnel records" within the meaning of Penal Code § 832.8(a) (these records do not concern personal data, medical history, employee benefits, advancement, or appraisal/discipline). Item 6 concerns training-compliance records that document SMPD's compliance with Civil Code §§ 1798.90.51 and 1798.90.53; such operational compliance records are not personnel records under § 832.8(a). To the extent any individual record contains both responsive content and Penal Code § 832.7-protected content, Government Code § 7922.525(b) requires segregable

production.

- **Segregability (Gov. Code § 7922.525(b)).** Where any individual responsive record contains both responsive content and exempt content (under any cited provision), the non-exempt portions must be produced with the exempt portions redacted. Categorical or wholesale withholding of records that contain segregable non-exempt content is not consistent with this requirement. This applies in particular to (i) the per-user audit-log entries in item 2; (ii) any review or approval correspondence in item 5 that may intermix administrative content with deliberative content; and (iii) any training-completion record in item 6 that may appear within a broader training file.

- **Civil Code § 1798.90.55(b).** The statute restricts sharing of "ALPR information" as defined in § 1798.90.5(c) (license-plate reads, search results, hit notifications). The records requested here are public-employee identifying information, platform user-account audit-log entries, role-and-delegation records, sharing-approval correspondence, and training-completion records — none of which is "ALPR information" within that definition.

- **Gov. Code § 7923.600 (investigation records).** Records identifying who is authorized to perform a department function, the authority under which an action was taken, and the documented review of that action are administrative access-control and approval records, not files compiled in connection with any particular investigation.

- **Records held outside the Department.** Per the scope-of-records argument established in PRA W012570-041926 and SMPD's MSA § 4.1 (produced under W012373-032026), Flock platform user-account records, event-log entries, and configuration records held by Flock Safety on SMPD's behalf are SMPD records under Gov. Code § 7920.530 and *City of San Jose v. Superior Court* (2017) 2 Cal.5th 608.

- **"Existing records only" / no obligation to create new records.** This request seeks existing records only and does not require SMPD to create a record that does not already exist (Gov. Code § 7922.530). Where the responsive information already appears within an existing record (for example, a job title within an HR roster, a permission grant within a Flock event log, an approval within an email thread), production of the existing record — with non-responsive or exempt content redacted under § 7922.525(b) — satisfies the request.

If any portion is denied, please provide specific exemption citations per Gov. Code § 7922.540. If volume is burdensome, please contact me to narrow scope rather than denying categorically.

Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 5/4/2026 11:58:19 PM, Brian C wrote:

Request Created on Public Portal